

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shevani Patel	Team: Team # 5	CCRB Case #: 201109053	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 07/07/2011 5:05 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/7/2013	Precinct: 43		
Date/Time CV Reported Wed, 07/13/2011 3:10 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/13/2011 3:10 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. CPT Philip Rivera	00000	916539	041 PCT
2. DTS David Binder	04870	921989	ESS 10
3. DTS Kevin Concannon	00576	905988	ESU
4. Officers			ESU

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Derrick Edouard	05447	934968	041 PCT
2. DTS Matthew Lingeza	04409	928648	041 PCT
3. SGT Christopher Pasquale	04418	927322	INT CIS
4. SSA Dominic Casalino	03578	901290	ESS 10

Officer(s)	Allegation	Investigator Recommendation
A . CPT Philip Rivera	Abuse: Captain Philip Rivera supervised the entry and search of § 87(2)(b) in the Bronx.	A . Exonerated
B . DTS David Binder	Force: Det. David Binder used physical force against § 87(2)(b)	B . Exonerated
C . Officers	Force: Officers used physical force against § 87(2)(b)	C . Officer(s) Unidentified
D . DTS Kevin Concannon	Force: Det. Kevin Concannon used physical force against § 87(2)(b)	D . Miscellaneous - Subject Retired
E . CPT Philip Rivera	Discourtesy: Captain Philip Rivera spoke rudely to § 87(2)(b)	E . Unsubstantiated
F . CPT Philip Rivera	Abuse: Captain Philip Rivera failed to show a search warrant.	F . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On July 13, 2011, § 87(2)(b) filed a complaint with the CCRB via telephone (encl. C1-2).

On July 7, 2011, at approximately 5:05 a.m., officers from the 41st Precinct and the Emergency Services Unit entered and searched § 87(2)(b) in the Bronx. The following allegations resulted:

- **Allegation A – Abuse of Authority:** Captain Philip Rivera supervised the entry and search of § 87(2)(b) in the Bronx. § 87(2)(g) it is recommended that **Allegation A be closed as exonerated.**
- **Allegation B – Force:** Detective David Binder used physical force against § 87(2)(b) § 87(2)(g) it is recommended that **Allegation B be closed as exonerated.**
- **Allegation C – Force:** Officers used physical force against § 87(2)(b) § 87(2)(g) it is recommended that **Allegation C be closed as officers unidentified.**
- **Allegation D – Force:** Detective Kevin Concannon used physical force against § 87(2)(b) Because Det. Concannon retired on June 1, 2012, it is recommended that **Allegation D be closed as miscellaneous – subject retired.**
- **Allegation E – Discourtesy:** Captain Philip Rivera spoke rudely to § 87(2)(b) § 87(2)(g) it is recommended that **Allegation E be closed as unsubstantiated.**
- **Allegation F – Abuse of Authority:** Captain Philip Rivera failed to show a search warrant to § 87(2)(b) § 87(2)(g) it is recommended that **Allegation F be closed as substantiated.**
- § 87(2)(g), § 87(4-b)

§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) a black female, who is § 87(2)(b) and has black hair and brown eyes, was § 87(2)(b) at the time of the incident. § 87(2)(b)

CCRB Testimony

On July 13, 2011, § 87(2)(b) provided an initial telephone statement to the CCRB (encl. C1-2) and on July 27, 2011, § 87(2)(b) provided another telephone statement (encl. C3). On August 4, 2011, § 87(2)(b) was interviewed at the CCRB (encl. C4-7). § 87(2)(g)

On July 7, 2011, at approximately 5:03 a.m., § 87(2)(b) was conducting a morning walk prayer in front of her building located at § 87(2)(b) in the Bronx, where she lives in § 87(2)(b). A black truck with approximately 50 officers pulled in front of the location. All of the officers exited the truck and ran into the building.

At approximately 5:23 a.m., § 87(2)(b) observed officers with a black male in custody. At the time, she did not know it was her son, § 87(2)(b). At approximately 6:00 a.m., § 87(2)(b) was notified by her sister that her home had been entered and her sons, § 87(2)(b) and § 87(2)(b) were arrested. On July 9, 2011, § 87(2)(b) entered her apartment for the first time since the incident. § 87(2)(b) passed out when she observed the condition of her apartment. She awakened in her neighbor's home. § 87(2)(b)'s friend took photos of the damage, which § 87(2)(b) described as ripped furniture and items removed from the wall and placed on the floor.

When § 87(2)(b) picked them up from court, she did not notice any injuries on § 87(2)(b) or § 87(2)(b). § 87(2)(b) observed a laceration over § 87(2)(b)'s left eye.

Victim: § 87(2)(b)

- § 87(2)(b) a black male, who is § 87(2)(b) and has brown hair and brown eyes, was § 87(2)(b) at the time of the incident. § 87(2)(b)

CCRB Testimony

On August 4, 2011, § 87(2)(b) was interviewed at the CCRB (encl. C8-12). His interview is summarized below.

On July 7, 2011, at approximately 5:03 a.m., § 87(2)(b) was asleep in his bedroom, as he heard officers enter his apartment. Upon entering the apartment, the kitchen is on the left and the living room is on the right with an extending hallway, leading to three bedrooms. As § 87(2)(b) opened his bedroom door and exited, he observed two officers inside of his mother's bedroom "beating on" § 87(2)(b) on the ground. An officer, who § 87(2)(b) described as a white male, 6'2" tall, older than 37 years old and wearing a black helmet and a navy blue ESU uniform, placed his knee in § 87(2)(b)'s back and held his arm behind him in a "wing" shape. The investigation identified this officer as Det. David Binder. § 87(2)(b) who was not in handcuffs at this point, asked what was going on and told the officers to get off of him. An unidentified officer, who § 87(2)(b) could not describe, kicked § 87(2)(b) approximately three times in his back.

§ 87(2)(b) was on the floor near the front entrance. He was handcuffed and not moving around. § 87(2)(b) screamed out in pain. § 87(2)(b) did not observe any officer throw § 87(2)(b) to the ground or struggle with him to remove his sheets.

Approximately four unidentified officers walked toward § 87(2)(b) and told him to get down. § 87(2)(b) asked why, and an unidentified officer told him he was being smart and to get on his knees. The officer placed § 87(2)(b) in handcuffs.

§ 87(2)(b) said, "Let me see a warrant," to an officer, who he described as a bald white male, 5'6" tall, with a slim build and brown eyes, approximately 28 years old and wearing a white shirt. The investigation identified this officer as Captain Philip Rivera. Captain Rivera responded, "Shut the fuck up." Captain Rivera never showed a warrant to § 87(2)(b).

The officers repeatedly told § 87(2)(b) “Tell me where the stuff’s at.” § 87(2)(b) did not know what they were talking about and he told the officers that nothing was inside of the apartment. § 87(2)(b) and § 87(2)(b) were removed from the apartment and the officers stayed inside with § 87(2)(b) for approximately ten minutes asking him to locate contraband. § 87(2)(b) was removed from his home and taken to the stationhouse where an officer, who § 87(2)(b) described as a black male, 5’6” tall, 190 pounds, with a peak hairline and low cut hair and wearing plainclothes, told him a judge had signed a warrant to search his home, but he did not show him the warrant. The investigation identified this officer as PO Derrick Eduoard. § 87(2)(b) was not charged. He appeared before a judge at Central Booking and learned that no evidence was obtained during the house raid. The case was later dismissed. § 87(2)(b) discovered that he was missing \$900 and a Blackberry phone worth \$300.

Victim: § 87(2)(b)

- § 87(2)(b) a black male, who is § 87(2)(b) and has brown hair and brown eyes, was § 87(2)(b) at the time of the incident. § 87(2)(b)

CCRB Testimony

On August 4, 2011, § 87(2)(b) was interviewed at the CCRB (encl. C13-17). His interview is summarized below.

On July 7, 2011, at approximately 5:03 a.m., § 87(2)(b) was asleep on the couch in his living room. § 87(2)(b) was awakened by a light shining in his eye and he observed an officer, who he described as a white male, 6’1” tall and wearing a black helmet. The investigation identified this officer as Det. Kevin Concannon. The officers were screaming, “Move.”

§ 87(2)(b) looked at Det. Concannon, who had his gun pointed at him, and covered his head with the sheets. § 87(2)(b) intended to go back to sleep because the officers were not looking for him. Det. Concannon grabbed the sheets as § 87(2)(b) held onto them, and they struggled with one another in a tug-of-war like fashion until Det. Concannon fully removed the sheets. Det. Concannon called other officers and stated, “We have a tough guy.” Det. Concannon grabbed § 87(2)(b) by the back of his neck (his breathing was not restricted), lifted him off the couch and threw him to the ground. § 87(2)(b) lifted his head up and an unidentified officer said, “Put your face down now.” Another unidentified officer, who § 87(2)(b) did not see, held him down on the ground by placing his knee in his back. § 87(2)(b) tried to get up, causing the officers to beat him up more. § 87(2)(b) did not specify exactly what type of force they used.

§ 87(2)(b) could not see his father from his position in the living room. § 87(2)(b) was handcuffed in the living room. No force was used against § 87(2)(b) § 87(2)(b) did not observe the officers search his home or damage any items.

§ 87(2)(b) was arrested and taken to the 43rd Precinct where he observed a slight laceration to his wrists from the handcuffs. He did not sustain any further injuries. He did not see any injuries on § 87(2)(b) § 87(2)(b) was taken to a juvenile detention center named Horizons on East 149th Street and Third Avenue in the Bronx. § 87(2)(b) was taken to Bronx Central Booking where he saw an attorney who told him that no evidence was found in his home to keep him and he was released without appearing in front of a judge.

Victim: § 87(2)(b)

- § 87(2)(b) a black male, who is § 87(2)(b) and has brown hair and brown eyes, was § 87(2)(b) at the time of the incident. § 87(2)(b)

CCRB Testimony

On August 4, 2011, § 87(2)(b) was interviewed at the CCRB (encl. C18-21). His interview is summarized below.

On July 7, 2011, at approximately 5:03 a.m., § 87(2)(b) was asleep inside of his wife's bedroom at § 87(2)(b) in the Bronx. § 87(2)(b) resides at § 87(2)(b) in the Bronx. § 87(2)(b) was awakened by a loud sound and he observed an officer with a shield. The investigation identified this officer as Det. David Binder. Det. Binder grabbed § 87(2)(b) by his arms and threw him to the floor. § 87(2)(b)'s face hit the floor and he sustained a laceration over his left eyebrow. He was on the floor and he yelled because he believed the officers were beating up § 87(2)(b) who had recently said, "Daddy, they hit me." Det. Binder placed his knee in the back of § 87(2)(b)'s neck, causing him to gasp for air. Approximately three unidentified officers kicked and punched him in his ribs. Det. Binder handcuffed him. § 87(2)(b) did not prevent the Det. Binder from placing him in handcuffs. He did not punch, kick or attempt to run away. There were approximately six officers inside of the apartment. § 87(2)(b) could not describe any of the officers because their faces were covered.

§ 87(2)(b) was unable to see § 87(2)(b) or § 87(2)(b) from his position in the living room.

After § 87(2)(b) and § 87(2)(b) were removed and taken into the hallway, § 87(2)(b) noticed he had not been shown a search warrant. He did not ask to see a search warrant and it was not shown to him. The officers did not search the apartment in his presence. § 87(2)(b) did not know what the officers were looking for. At the stationhouse, a black officer, identified through the investigation as PO Edouard, told § 87(2)(b) "We got it." However, § 87(2)(b) did not know what he meant by that statement. § 87(2)(b) was charged with disorderly conduct. He denied fighting with the officers. The officers had never entered his home in the past.

When § 87(2)(b) returned home, he realized the furniture was vandalized.

NYPD Statements:

Subject Officer: CAPTAIN PHILIP RIVERA

- *Captain Philip Rivera, a § 87(2)(b) Hispanic male, is § 87(2)(b) and has a shaven bald head and brown eyes. On July 7, 2011, Captain Rivera worked in uniform from 4:00 a.m. until 1:00 p.m. assigned as the supervisor for search warrants conducted by the 41st Precinct. Captain Rivera is not required to keep a memo book.*

CCRB Testimony

On February 7, 2012, Captain Philip Rivera was interviewed at the CCRB (encl. D2-3). His interview is summarized below.

On July 7, 2011, at approximately 5:05 a.m., Captain Rivera arrived at § 87(2)(b) in the Bronx in order to execute a search warrant concerning a firearm and ammunition that allegedly belonged to § 87(2)(b). Captain Rivera saw a copy of the search warrant at the tactical plan meeting held prior to entering the location. The field intelligence officer, Sgt. Christopher Pasquale and members of the Emergency Service Unit (ESU) had a copy of the search warrant. Approximately eight members of ESU, truck 18, entered and secured the location by placing all of the civilians into handcuffs prior to Captain Rivera or any of the members of his field team entering the location. Captain Rivera heard the ESU officer say something to the effect of, "Get down," and "Show me your hands." Captain Rivera did not hear

the officers use any profanity and he heard bodies moving around. However, he could not determine whether a struggle had ensued between ESU officers and any of the civilians.

After approximately five minutes, Captain Rivera and the members of his field team entered the apartment. Captain Rivera did not observe any particular damage to the apartment. However, the apartment was in slight disarray. Captain Rivera observed § 87(2)(b) in handcuffs on the ground near the entrance. § 87(2)(b) did not appear to have been injured and he did not complain of any injury. Captain Rivera did not speak directly with § 87(2)(b). § 87(2)(b) was handcuffed on the ground in a bedroom and he did not appear to be injured or complain of any injuries. There were ESU officers standing near § 87(2)(b) and § 87(2)(b) to make sure they remained still.

Captain Rivera entered another bedroom where § 87(2)(b) was handcuffed on the ground. § 87(2)(b) asked Captain Rivera why the officers had entered his home and requested to see a copy of the search warrant. § 87(2)(b) did not request to see a copy of the search warrant from any other officer in Captain Rivera's presence. Captain Rivera did not tell § 87(2)(b) "Shut the fuck up," in response to his request to see the search warrant. Captain Rivera told § 87(2)(b) that he would be shown a copy of the search warrant once the apartment had been stabilized. Captain Rivera explained that he considered a location to be stabilized once all of the civilians are secured in handcuffs and/or accounted for. There was an infant at the location and Captain Rivera had to assure that the child was cared for. It took between five and ten minutes to stabilize the location. After the apartment was stabilized, Captain Rivera recalled that § 87(2)(b) had requested to see the search warrant. However, Captain Rivera did not have a copy of the search warrant to show to § 87(2)(b). Captain Rivera asked Sgt. Pasquale whether he had a copy of the search warrant and he confirmed that he had a copy. Captain Rivera did not inform Sgt. Pasquale that § 87(2)(b) had requested to see a copy of the search warrant and he did not tell Sgt. Pasquale to show § 87(2)(b) a copy of the search warrant. Sgt. Pasquale was not present when § 87(2)(b) asked Captain Rivera to see the search warrant. Captain Rivera acknowledged that it was his responsibility, as the commander, to ensure that the search warrant is shown. The search warrant was never shown to § 87(2)(b).

The apartment was searched for approximately one hour. Captain Rivera remained inside of the apartment during the search and he did not observe the officers damage any living room furniture by cutting the cushions open, although that action would not be uncommon as the officers are allowed to search anywhere where a firearm or ammunition could be stored. Captain Rivera explained that the officers do not have to feel for contraband before damaging any item to search for contraband. Captain Rivera did not observe any officers crush the toilet bowl in the bathroom and remove a radiator from its location in any part of the apartment. The officers recovered a crack pipe with crack residue in the kitchen of the apartment. The officers did not recover a firearm, any ammunition or any US currency.

Subject Officer: DETECTIVE DAVID BINDER

- *Det. David Binder, a § 87(2)(b) white male, is § 87(2)(b) and with blond hair and blue eyes. On July 7, 2011, Det. Binder worked in uniform from 3:00 a.m. until 2:35 p.m. assigned to the apprehension team, which is specifically responsible for assistance in apprehending individuals prior to the execution of search warrants. Det. Binder was temporarily assigned to the apprehension team from February 2011 until August 2011 and within those six months he assisted in over 200 search warrants. Det. Binder is permanently assigned to ESU Truck 10 that operates in Flushing, Queens.*

Memo Book:

Det. Binder did not have any relevant memo book entries.

CCRB Testimony

On March 22, 2012, PO David Binder was interviewed at the CCRB (encl. D6-7). His interview is summarized below.

Det. Binder did not have an independent recollection of the incident that occurred on July 7, 2011, at approximately 5:03 a.m. Det. Binder reviewed a copy of the warrant execution supplemental report and indicated that according to the report, he was the fourth officer to enter § 87(2)(b) in the Bronx. Det. Binder was wearing a full uniform, with a vest and helmet, as were the other ESU officers. Det. Binder was armed with an MP5, which is a sub-machine gun. The warrant execution supplemental report indicates that Det. Binder apprehended a § 87(2)(b) black male, identified through investigation as § 87(2)(b). Det. Binder was shown a photograph of § 87(2)(b). However, he did not recognize him. Det. Binder did not recall whether he took § 87(2)(b) to the ground and he did not observe any officers punch or kick § 87(2)(b). Det. Binder does not recall whether any officers or which officers were present with him inside of the location. Det. Binder did not recall whether he observed any injuries to § 87(2)(b). Any injuries to civilians would be noted on the ESD2 report (ESU Warrant Execution Report). However, Det. Binder reviewed the report and it did not indicate that anyone had been injured.

Det. Binder was shown a photograph of § 87(2)(b). However, he did not recall him. Det. Binder did not recall whether he or any other officers struggled with § 87(2)(b) inside of the living room.

Det. Binder is not responsible for searching the location as that is done by officers assigned to the precinct. Det. Binder would not have been present when the search was conducted. Det. Binder did not recall the incident to determine whether he observed any damage at the location.

Witness Officer: PO DERRICK EDOUARD

- *PO Derrick Edouard, a § 87(2)(b) black male, is § 87(2)(b) and has black hair and brown eyes. On July 7, 2011, PO Edouard worked from 4:00 a.m. until 2:35 p.m. in plainclothes with Sgt. Pasquale and other members of the 41st Precinct crime team. PO Edouard was the assigned arresting officer for the day.*

Memo Book:

PO Edouard's memo book entries indicate that at 5:05 a.m. he entered § 87(2)(b) in the Bronx and executed a search warrant. At 5:06 a.m., three individuals were arrested. The search was completed at 9:45 a.m.

CCRB Testimony

On November 17, 2011, PO Derrick Edouard was interviewed at the CCRB (encl. D11-12). His interview is summarized below.

On July 7, 2011, at approximately 5:05 a.m., members of ESU, who PO Edouard could not identify, entered § 87(2)(b) in the Bronx to secure the location. There were more than four members of ESU that entered the apartment. PO Edouard and his team remained in the hallway for approximately one minute until the location was secured. PO Edouard heard a "scuffle" that he described as officers yelling and physically taking individuals to the ground. PO Edouard could not see what occurred from his position in the outside hallway and he could not determine from which part of the house the noise emanated. PO Edouard did not hear any officer

state, “Put your fucking face down,” or use any other profanity and he did not use any profanity himself.

PO Edouard entered the apartment and went immediately toward the right down the hallway to a male, identified as § 87(2)(b) who was seated in handcuffs in the hallway. PO Edouard did not observe any injuries to § 87(2)(b) § 87(2)(b) tried to stand up and PO Edouard forced him down by holding his shoulders and told him to remain seated. PO Edouard did not punch § 87(2)(b) in the face and he did not see any other officer do so. § 87(2)(b) never complained to PO Edouard that any officer had punched him in the eye. § 87(2)(b) cursed at the members of the ESU team asking, “Why the fuck are you guys in my house so early in the morning?” However, he did not complain of any injury.

Another male, identified as § 87(2)(b) was inside of the living room and PO Edouard heard him yelling at the officers. PO Edouard did not recall § 87(2)(b)'s statements. PO Edouard could not see § 87(2)(b) and he did not see any officers use any physical force against him. PO Edouard was not informed that officers had to use any force against § 87(2)(b) § 87(2)(b). A third male, identified as § 87(2)(b) was located inside of one of the bedrooms at the end of the hallway. PO Edouard did not enter that bedroom and he did not see what occurred. PO Edouard did not have a discussion with § 87(2)(b) or § 87(2)(b) while inside of the apartment. He spoke with them briefly while taking their fingerprints at the stationhouse. PO Edouard informed § 87(2)(b) that the officers were inside of his home executing a search warrant that had been signed by a judge. PO Edouard did not recall whether § 87(2)(b) or § 87(2)(b) requested to see a copy of the search warrant and he did not recall whether a copy was shown to anyone inside of the apartment. PO Edouard was in possession of a copy of the search warrant and a copy was provided to the ESU team.

§ 87(2)(b) and § 87(2)(b) were removed from the home and PO Edouard and other members, whom he did not recall, searched the apartment. PO Edouard reviewed a copy of the search warrant which indicated that a search was conducted for firearms and ammunition. PO Edouard searched everywhere inside of the apartment where such items could be held and some items such as air conditioners, toilet bowls, cupboards and indoor heating were damaged as a result. A crack pipe was recovered from the kitchen. However, PO Edouard did not recall which officer located the contraband. PO Edouard did not recall whether any other illegal items were recovered. PO Edouard did not recall \$900 being recovered at the location and he did not vouch any money with any of the arrests.

Police Officers Not Interviewed:

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g).

NYPD Documents

Search Warrant

Search warrant #§ 87(2)(b) (encl. E1-2) authorized the NYPD to enter and search § 87(2)(b) § 87(2)(b) Bronx, New York at any time within 10 days of issuance, which was § 87(2)(b) § 87(2)(b). The warrant was signed by Honorable § 87(2)(b) Supreme Court Justice of the Bronx. The warrant targeted firearms, ammunition and evidence of ownership or occupancy of premises.

Emergency Services Unit Warrant Execution Supplemental Report

The ESU warrant execution supplemental report (encl. E3-6), lists the officers' assignments and equipment. Detective Kimberly Zirilli, armed with a shield and pistol, and Detective Michael

Mainolfi, armed with an MP5, were the 1st entry team; Detective Andrew Sperber, armed with a shield and a pistol, and Detective Binder, armed with an MP5, were the 2nd entry team; Sgt. Dominic Casalino was the supervisor; Detective Thomas Longa and Detective Juan Maldonado were both armed with entry tools and were assigned to tools and cuffs; and Detective Philip Scarangella, armed with an M4 rifle, was rear security. A resident identified as § 87(2)(b) was handcuffed by Detective Binder and a resident identified as § 87(2)(b) was handcuffed by Detective Concannon.

Pre-Execution Search Warrant Plan

The pre-execution search warrant plan (encl. E7), indicated that this was a no-knock warrant, obtained by Detective Matthew Lingeza. The plan also lists Captain Rivera's assignment as overall leader.

41st Precinct Roll Call

The roll call for July 7, 2011, tour 2 (encl. E8), confirms that Captain Rivera was working as the commanding officer on the date of the incident.

Command Log Entry

The arrests for § 87(2)(b) and § 87(2)(b) were entered into the command log (encl. E9) at 05:30 a.m. on July 7, 2011. Everyone's physical and mental condition was listed as apparently normal. No charges were noted. § 87(2)(b) was transported to Horizon at 10:20 p.m. in RMP #2297. § 87(2)(b) and § 87(2)(b) were transported to Bronx Central Booking at 6:05 p.m. in van #5777.

Property Vouchers

PO Edouard prepared the voucher #§ 87(2)(b) for § 87(2)(b) (encl. E16). The voucher receipt lists § 87(2)(b) was in possession of two cellphones and 2 cellphone batteries. This property was seized as arrest evidence. PO Edouard prepared the additional voucher #§ 87(2)(b) for § 87(2)(b) (encl. E17). The voucher receipt lists § 87(2)(b) was in possession of one pill bottle with alleged crack residue. This property was seized as arrest evidence.

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- [REDACTED]
[REDACTED]

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming property damages and personal and emotional injuries. § 87(2)(b) is seeking ten million dollars as redress (encl. F1-2).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

- [illegible]

Civilians CCRB History

- § 87(2)(b) has filed the following CCRB complaint (encl. B4):

- § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED].
- § 87(2)(b) [REDACTED] has filed the following CCRB complaint (encl. B5):
 - § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED].

Subject Officers CCRB History

- Captain Rivera has been a member of the service for 16 years and there are two substantiated CCRB allegations against him. (encl. B1).
 - In CCRB # 9801122, Captain Rivera improperly searched an individual and abused his authority. The CCRB Board recommended charges, but the NYPD did not impose any discipline.
- Det. Concannon is a retired member of service and there are no substantiated CCRB allegations against him. (encl. B2).
- Det. Binder has been a member of the service for 13 years and there are no substantiated CCRB allegations against him. (encl. B3).

Conclusion

Identification of Subject Officers

- Police documentation confirmed that Captain Rivera supervised the search warrant at the location. Captain Rivera acknowledged his involvement with the incident § 87(2)(g) [REDACTED]
[REDACTED]
- Police documentation linked Det. Binder and Det. Concannon to this incident. The ESU warrant execution supplemental report identified Det. Binder as the officer who handcuffed § 87(2)(b) [REDACTED]. It also identified Det. Concannon as the officer who handcuffed § 87(2)(b) [REDACTED]
§ 87(2)(g) [REDACTED]

Investigative Findings and Recommendations

Allegations not Pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation A–Abuse of Authority: Captain Philip Rivera supervised the entry and search of § 87(2)(b) in the Bronx.

§ 87(2)(l)
§ 87(2)(l)
§ 87(2)(l)
§ 87(2)(l)
§ 87(2)(l) it is recommended that **Allegation A be closed as exonerated.**

Allegation B – Force: Detective David Binder used physical force against § 87(2)(b)

§ 87(2)(b) alleged that, prior to his apprehension, Det. Binder grabbed him by the arms and threw him to the floor, causing him to sustain a laceration over his left eyebrow. § 87(2)(b) also alleged that Det. Binder placed his knee in the back of his neck, causing him to gasp for air. No other witness or officer corroborated § 87(2)(b)'s laceration, except for § 87(2)(b) who was not present during the incident. The Command Log noted § 87(2)(b)'s condition as “apparently normal.” Other officers present said they did not witness § 87(2)(b) being thrown to the ground, witness any injuries to him or hear him complain of any injury.

Patrol Guide Procedure 203-11 authorizes an officer to use the minimum amount of force necessary to overcome resistance to effect an arrest (encl. A10-11).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation B be closed as exonerated.**

Allegation C – Force: Officers used physical force against § 87(2)(b)

§ 87(2)(b) alleged that three officers, who he could not describe, kicked and punched him in the ribs. § 87(2)(g)

§ 87(2)(b) stated that he could not describe any of the officers because their faces were covered. Therefore, it is recommended that **Allegation C be closed as officers unidentified.**

Allegation D – Force: Detective Kevin Concannon used physical force against § 87(2)(b)

§ 87(2)(b) alleged that Det. Concannon used physical force against him. Det. Concannon retired on June 1, 2012 (encl. F74). Therefore, it is recommended that **Allegation D be closed as miscellaneous – subject retired.**

Allegation E – Discourtesy: Captain Philip Rivera spoke obscenely and/or rudely to § 87(2)(b)

§ 87(2)(b) alleged that Captain Rivera told him to “shut the fuck up” in response to a request for the search warrant. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation E be closed as unsubstantiated.**

Allegation F – Abuse of Authority: Captain Philip Rivera failed to show a search warrant to

§ 87(2)(b)

Immediately following his apprehension, § 87(2)(b) requested that Captain Rivera provide him with a search warrant. Captain Rivera corroborated this statement, as he recalled that § 87(2)(b) asked him to see a search warrant. As acknowledged by Captain Rivera, § 87(2)(b) did not request to see a copy of the search warrant from any other officer in Captain Rivera's presence. However, Captain Rivera stated that he could only present the warrant once the apartment had been 'stabilized.' Captain Rivera explained that the apartment would be considered stabilized once all of the civilians were secured in handcuffs, but because there was an infant at the location, Captain Rivera wanted to assure that he would be cared for. Captain Rivera claimed that it took between five and ten minutes to stabilize the apartment, but once the apartment was stabilized, Captain Rivera realized that he did not possess a copy of the search warrant. Captain Rivera said that he asked Sgt. Pasquale whether he had a copy of the search warrant, but then stated that he never told Sgt. Pasquale that § 87(2)(b) had asked to see the warrant and never told Sgt. Pasquale to show it to § 87(2)(b). A search warrant was never presented to § 87(2)(b) after his request to Captain Rivera.

New York State Criminal Procedure Law § 690.50(1) states that during the execution of a search warrant, an officer must make reasonable effort show a copy the warrant upon request (encl. A12-13). Additionally, Patrol Guide Series 212, Interim Order Number 8, requires an officer to present a copy of the search warrant, when able to do so safely, to any occupants of the premise (encl. A1-5).

§ 87(2)(g)

it is recommended that **Allegation F be closed as substantiated.**

§ 87(2)(g), § 87(4-b)

Team: 5

:

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date